CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

This **CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT** (this "**Agreement**") made on [07-10-2025] (the "**Effective Date**") by and between:

Mantarav Digital Information Technology Consultancy L.L.C. having its principal place of business at 2, Al Rahah St., Al Rahah, Abu Dhabi 23035, United Arab Emirates represented herein by its authorised signatory, Navdeep Singh (collectively with its successors, assigns, and subsidiaries, "**EMB**"); and

[Deepija Telecom Solutions], a company/ limited liability partnership/ partnership/ one-person company incorporated under the laws of [Act, 1956 (No 1 of 1956),], bearing registration No. [**7027804306**], and having its principal place of business at [8042, Salah Al Din Ayoubi Road, King Abdulaziz, Riyadh, Saudi Arabia, 11223] represented herein by its authorised signatory, Mr. Pinaki Das (hereinafter referred to as the "**Deepija Telecom Solutions**", which term will mean and include, unless the context otherwise dictates, its directors, officers, representatives, agents, and permitted assigns).

EMB and the Counterparty are hereinafter collectively referred to as "**Parties**" and each individually as a "**Party**".

1. PREAMBLE

1.1 The Parties are exploring the possibility of engaging in one or more mutually beneficial business relationships (collectively, the "**Business Relationship**").

1.2 The Parties recognise that in the course of their discussions to further the Business Relationship, it will be necessary for each Party to disclose to the other certain Confidential Information *(as defined below)*.

1.3 Each Party desires to set forth the terms that apply to such Confidential Information.

NOW, THEREFORE, for and in consideration of the foregoing, of the promises and covenants set forth herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties do hereby agree as follows:

2. CONFIDENTIALITY OBLIGATIONS

2.1 The Parties will:

(i) use reasonable efforts to maintain the confidentiality of the information and materials, whether oral, written or in any form whatsoever, of the other that may be reasonably understood, from legends, the nature of such information itself and/ or the circumstances of such information's disclosure, to be confidential and/ or proprietary thereto or to third parties to which either of them owes a duty of nondisclosure (collectively, "**Confidential Information**"); and

(ii) take reasonable action in connection therewith, including without limitation at least the action that each takes to protect the confidentiality of its comparable proprietary assets; and

(iii) to the extent within their respective possession and/ or control, upon termination of this Agreement for any reason, immediately return to the provider thereof all Confidential Information not licensed or authorised to be used or enjoyed after termination or expiration hereof, and

(iv) with respect to any person to which disclosure is contemplated, require such person to execute an agreement providing for the treatment of Confidential Information set forth in sub-clauses (i) through (iii) above; and

(v) disclose Confidential Information only to its employees, consultants, contractors, and/ or end customer (as the case maybe) on a need-to-know basis solely for the purposes of Business Relationship and not for any other purpose, provided that such disclosure is also based on confidentiality obligations no less stringent than the ones set out hereunder; and

(vi) have and hereby reserve the right to disclose Confidential Information, on request, to governmental or statutory authorities without an obligation to notify the disclosing Party if such notification is prohibited by Applicable Law *(as defined below)*. The receiving Party will make reasonable efforts to seek permission from the authorities to disclose such information request to the disclosing Party. "**Applicable Law**" will mean the laws of Abu Dhabi and/ or such other jurisdiction to which the Counterparty is subject, including all orders, rules, regulations, executive orders, decrees, policies, judicial decisions, notifications or other similar directives made pursuant to such laws.

2.2 The foregoing will not require separate written agreements with employees and agents already subject to written agreements substantially conforming to the requirements of this Agreement nor with legal counsel, certified public accountants, or other professional advisers under a professional obligation to maintain the confidentiality of clients.

2.3 Notwithstanding the foregoing, the obligation of a person to protect the confidentiality of any Confidential Information or materials will terminate as to any information or materials which:

(i) are, or become, public knowledge through no act or failure to act of such person; or

(ii) are publicly disclosed by the proprietor thereof; or

(iii) are lawfully obtained without obligations of confidentiality by such person from a third party after reasonable inquiry regarding the authority of such third party to possess and divulge the same; or

(iv) are independently developed by such person from sources or through persons that such person can demonstrate had no access to Confidential Information; or

(v) are lawfully known by such person at the time of disclosure other than by reason of discussions with or disclosures by the Parties.

3. OWNERSHIP & RETURN

3.1 All Confidential Information delivered pursuant to this Agreement will be and remain the property of the disclosing Party, and any documents containing or reflecting the Confidential Information, and all copies thereof, will be promptly returned to the disclosing Party upon written request, or destroyed at the disclosing Party's option.

3.2 Nothing herein will be construed as granting or conferring any rights by license or otherwise, express or implied, regarding any idea made, conceived or acquired prior to or after the Effective Date, nor as granting any right with respect to the use or marketing of any product or service.

3.3 The Parties will use the Confidential Information only for the Business Relationship.

4. NON-SOLICITATION AND NON-COMPETE

4.1 The Counterparty agrees not to pursue any transaction or business relationship that is directly competitive to the business of EMB that makes use of any Confidential Information during the term of this Agreement, other than through EMB or on behalf of EMB.

4.2 The Counterparty agrees that during the term of this Agreement, and the term of any subsequent services agreement executed between the Parties following from this Agreement, it will not, directly or indirectly, for the benefit of itself or any other third party:

(i) solicit or induce, or make any attempt to solicit or induce, any Identified Client *(as defined below)*; or

(ii) request or advise any Identified Client, consultant, supplier, or vendor of EMB to withdraw, curtail, cancel, or refrain from doing business with EMB for any reason.

5. NON-CIRCUMVENTION

5.1 In furtherance of the Business Relationship, EMB will introduce its client ("**Identified Client**") to the Counterparty for the provision of proposed services. The identity of the Identified Client will be disclosed to Counterparty only after execution of this Agreement.

5.2 During the term of this Agreement and for a period of two (2) years thereafter, Counterparty agrees to refrain from approaching, transacting, dealing, communicating, and/or conspiring with Identified Client in any business or commercial relationship whatsoever without the prior written consent of EMB. Provided this restriction will not apply where Counterparty is availing services under a definitive service agreement with EMB and/or where EMB has provided written consent for the same.

5.3 In the event the Counterparty, directly or indirectly, does any act or omission which results in a breach of this Clause 5, the Counterparty will indemnify EMB against all losses incurred by EMB as a consequence of such breach by the Counterparty, including reasonable attorney's costs.

6. BINDING PERIOD

The obligations of the Parties under this Agreement will continue and survive the completion or abandonment of the Business Relationship and will remain binding for a period of two (2) years from the Effective Date. This Clause will continue to be binding even in the event of the Agreement's termination.

7. RELIEFS

7.1 As a violation by either Party of this Agreement could cause irreparable injury to the other Party and as there is no adequate remedy at law for such violation, the non-breaching Party may, in addition to any other remedies, including without limitation, injunctive relief available to it at law or in equity, enjoin the breaching Party in a court of equity for violating or threatening to violate this Agreement.

7.2 In the event either Party is required to enforce this Agreement through legal action, then it will be entitled to recover from the other Party all costs incurred thereby, including without limitation, reasonable attorney's fees.

8. NO REPRESENTATION OR WARRANTY

Neither Party makes any representation or warranty with respect to any Confidential Information disclosed by it, nor will either Party or any of their respective representatives have any liability hereunder with respect to the accuracy or completeness of any Confidential Information or the use thereof.

9. SEVERABILITY

Any provision of this Agreement held or determined by a court (or other legal authority) of competent jurisdiction to be illegal, invalid, or unenforceable in any jurisdiction will be deemed separate, distinct and independent, and will be ineffective to the extent of such holding or determination without:

(i) invalidating the remaining provisions of this Agreement in that jurisdiction; or

(ii) affecting the legality, validity or enforceability of such provision in any other jurisdiction.

10. NOTICES

10.1 Any notice required or permitted to be given hereunder will be: **(a)** in writing; and **(b)** effective on the first business day following the date of receipt; and **(c)** delivered by one of the following means:

(i) by personal delivery; or

(ii) by prepaid, overnight package delivery or courier service; or

(iii) by e-mail.

10.2 All Notices given under this Agreement will be addressed to the addresses stated at the outset of this Agreement, or to new or additional addresses as the Parties may be advised in writing.

11. GOVERNING LAW & DISPUTES

This Agreement, and any dispute arising from the relationship between the Parties to this Agreement, whether contractual or non-contractual, will be governed by the laws of Abu Dhabi, excluding its conflict of laws principles. If any dispute, claim, controversy, or difference between the parties arises, out of or in connection with this Agreement, including any question regarding its existence, validity, interpretation, or termination (a "Dispute"), then the parties will use their best endeavours to settle the Dispute. If the parties do not reach a solution within a period of thirty (30) days, then the Dispute will finally be settled by way of arbitration by a sole arbitrator under the rules of the Abu Dhabi Commercial Conciliation & Arbitration Centre. The language of arbitration will be English, and the seat and venue of the arbitration will be Abu Dhabi. In all cases, the appointed arbitrator will have full competence to resolve the dispute and the arbitrator's award in this regard will be final and binding upon the parties.

12. WAIVER

Neither Party will be deemed to waive any of its rights, powers or remedies hereunder unless such waiver is in writing and signed by said Party.

13. SUCCESSORS

This Agreement is binding upon and inure to the benefit of the Parties and their successor and assigns.

14. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement and understanding of the Parties with respect to the subject matter hereof, and is intended as the Parties' final expression and complete and exclusive statement of the terms thereof, superseding all prior or contemporaneous agreements, representations, promises and understandings, whether written or oral. Neither Party is to be bound by any pre-printed terms appearing in the other Party's form documents, tariffs, purchase orders, quotations, acknowledgments, invoices, or other instruments.

15. AMENDMENT

This Agreement may be amended or modified only by an instrument in writing signed by both Parties.

16. TERMINATION

This Agreement may be terminated by either Party by giving a 30 days' notice to the other Party.

17. INDEMNIFICATION

The Counterparty agrees to indemnify, defend and hold harmless EMB from and against any and all claims, losses, damages, liabilities and expenses (including reasonable attorneys' fees) arising out of or in connection with any breach of this Agreement by the Counterparty.

18. DATA PROTECTION

Each Party will comply with their obligations under applicable data protection laws as set out under the provisions of the Federal Decree by Law No. (45), 2021, United Arab Emirates and rules (if, any) made thereunder relating to the collection, use, processing, protection, or disclosure of personal data relating to individuals. This includes, without limitation, obtaining and maintaining all necessary and valid data subject consents, providing all necessary privacy or fair information processing notices, observing data protection requirements, and obtaining and maintaining all necessary registrations and authorizations with the competent data protection authorities.

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorized officers on the day and year first above written.

For **Mantarav Digital Information Technology Consultancy L.L.C**	For **[Deepija Telecom Solutions]**
Signature: **Name: Navdeep Singh** **Designation: Head of Supply** **Place: India** **E-mail: navdeep.singh@emb.global**	**Signature:** **Name: Mr. Pinaki Das** **Designation: Country Manager** **Place: Saudi Arabia** **E-mail: pinaki@deepijatel.com**